

The U.P. Goshala Rules, 1964

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State of Uttar Pradesh - Act

The U.P. Goshala Rules, 1964

UTTAR PRADESH

India

The U.P. Goshala Rules, 1964

Rule THE-U-P-GOSHALA-RULES-1964 of 1964

Published on 1 January 1964

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The U.P. Goshala Rules, 1964

Published vide Notification No. 8115/12-E-144-63, dated January 16, 1965, published in the U.P. Gazette, Part 1-A, dated January 30, 1965

In exercise of powers under Section 20 of Uttar Pradesh Goshala Adhiniyam, 1964 (U.P. Act No. X of 1964), the Governor of Uttar Pradesh is pleased to make the following Rules:

1.

Short title and commencement - [Section 20].

(1)

These rules may be called Uttar Pradesh Goshala Rules, 1964.

(2)

They shall apply to the areas to which provisions of the Uttar Pradesh Goshala Adhiniyam, 1964 (U.P. Act X of 1964),

are applied under sub-section (3) of Section 1 of the said Act.

2.

Definitions.

- In these rules unless there is anything repugnant in the subject or context:

(a)

"Adhiniyam" means the Uttar Pradesh Goshala Adhiniyam, 1964;

(b)

"Form" means a form appended to these rules;

(c)

"Section" means section of the Adhiniyam;

(d)

"representative" means a person elected or nominated by the trustees of a Goshala under Section 3.

3.

Federation and its constitution - [Section 3 (2) and Section 20 (2) (a)].

(1)

The Federation shall consist of thirty members including the President, a Vice-President, a Secretary, a Joint Secretary, and a Treasurer.

(2)

The members of the Federation shall be elected by the representatives of the Goshala of the State from amongst themselves in the following manner, namely:

(i)

within three months of the preparation of the Pradesh Goshala Register a notice specifying the date, place and time of the meeting for election of the members and office-bearers of the Federation shall be sent by the Registrar under postal certificate to each trustee of the Goshala at least twenty-one days before the date of the meeting;

(ii)

the Director of Animal Husbandry or in his absence the Registrar shall preside over the meeting for the election of members and office-bearers of the Federation;

(iii)

the quorum for the meeting shall consist of three-fourth of the total number of representatives:

Provided that if at any meeting the quorum is not complete, the Registrar or the President, as the case may be, may adjourn the meeting to some other date and the notice of such meeting shall be issued in the same manner as is prescribed to clause (i) and no quorum shall be required for an adjourned meeting;

(iv)

all votes shall be recorded by the representatives in person in such manner as may be determined by the presiding officer; and

(v)

the election of each member or officer-bearer shall be by a majority of votes and in the case of an equality of votes the presiding officer shall have a casting vote.

(3)

The President, office-bearers and other members of the Federation shall hold office for a period of three years :

Provided that the term of a person elected as a member or office bearer to fill a casual vacancy shall be for the unexpired term of the member or office bearer as the case may be, in whose place he has been elected.

(4)

(i)

The election of the President, office-bearers and other members of the Federation shall be completed as far as possible within two months after the expiry of the term of three years.

(ii)

Notwithstanding anything to the contrary contained elsewhere in these rules, the term of the Federation may be extended by the Registrar for any period till its reconstitution.

4.

Procedure for the conduct of other business.

- Subject to the provisions contained in these rules and the Adhiniyam, the Federation may determine the procedure for the conduct of its business.

5.

Proceedings to be recorded.

- Proceedings of the meeting of the Federation shall be recorded in Minute Book signed by the person for the time being presiding over the meeting and the Secretary of the Federation.

6.

Submission of statement by trustee - [Section 4].

(1)

The trustee of every Goshala shall submit to the Registrar the statement required under sub-section (1) of Section 4 in Form I which shall be signed by the trustee or his authorised agent and verified by the person signing the statement in the manner prescribed in respect of a plaint in a civil suit.

(2)

Where any statement required to be delivered to the Registrar under the Adhiniyam for registration is found to be incomplete or defective in any of the particulars required by Adhiniyam, the Registrar shall return it for rectification and shall not register or file it until all the requirements of the Adhiniyam have been complied with. When the Registrar is satisfied that provisions prescribed in respect thereof have been duly complied with he shall record an entry of the statement in the Pradesh Goshala Register and shall file the statement.

7.

Maintenance of register and issue of certificate - [Section 6 (1)].

- The Pradesh Goshala Register maintained by the Registrar under Section 6 shall be in Form II and the Registrar shall grant a certificate of registration in Form III to the trustee or his agent.

8.

Section 6 (2).

- The copies or extracts of the Pradesh Goshala Register shall be furnished by the Registrar on receipt of an application along with a fee of rupee one only. The fee shall either be deposited in cash in the office of the Registrar or by postal order.

9.

Change in particulars of Goshala to be reported - [Section 7 (2)].

- The manner of signing and verifying a report under Section 7 shall be the same that of plaint in a civil suit.

10.

Notice of enquiry - [Section 8 (2)].

- The notice of enquiry under sub-section (2) of Section 8 to be served on the person shall be in Form IV. The notice shall also be published in one issue of both English and Hindi newspapers having large circulation in the areas concerned.

11.

Issue of notice of demand for failure to pay fees - [Section 9].

- On the failure of a trustee to pay the fee required under Section 9 the Registrar shall issue a notice of demand to the trustee in Form V.

12.

[Section 10 (2)].

- The accounts of receipt and expenditure shall be maintained by the Goshala in Form VI.

13.

The accounts maintained by the trustee of a Goshala shall be examined and audited annually after the close of the year on 31st day of March by a firm of Chartered Accountants.

14.

Statement of accounts to be furnished by trustee - [Section 10 (5)].

- The trustee of every Goshala shall submit to the Registrar a statement of account required under sub-section (5) of Section 10, in Form VII.

15.

[Section 11].

(1)

After fixing the area of a Goshala on the recommendation of the Federation under sub-section (1) of Section 11, the Director shall send a notice in Form VIII to the trustee of a Goshala and a copy of that notice to the Registrar.

(2)

All realizations made by the traders and merchants under sub-section (3) of Section 11 shall be paid within thirty days of the expiry of each half year to the trustee of Goshala functioning in their areas.

(3)

A merchant or trader paying money in accordance with sub-section (3) of Section 11 aforesaid shall be entitled to get from the Goshala of the area concerned collection expenses, at the rate of 20 per cent.

16.

[Section 12].

- Each trader and merchant shall furnish to the District Livestock Officer, of the district concerned half-yearly statements of realization made in Form No. IX within thirty days of the expiry of each half year.

17.

Issue of notice by the Registrar [Section 13 (1)].

- On the application of a trustee of Goshala under sub-section (1) of Section 13 against a merchant or a trader, the Registrar may for the purpose of ascertaining the moneys payable by the trader to the trustee, issue a notice in Form X.

Form No. I

[Rule 6 (1)]

Statement of registration of Goshalas under Section 4 of the Uttar Pradesh Goshala Adhiniyam, 1964

Name and location of Goshala

The date and the manner of establishment of the
Goshala

Name and address of the trustee of the Goshala
and where the trustee is a body of persons, the names and address
of all such persons

The mode of succession to the trusteeship

Particulars of Goshala property

1

2

3

4

5

The gross annual income, if any, of the Goshala
during the three years immediately preceding the year in which
the statement is furnished

The source of such income

The expenditure if any, incurred in connection
with the Goshala during the period referred to in column No. 6

Such other particulars as may be prescribed

6

7

8

9

Notes. - (i) The statement shall be signed by all the trustees or by their agent specially authorised in this behalf,

(ii)

Each person signing the statement shall verify in the manner prescribed under Rule 6 (2).

Form No. II

[Rule 7]

Uttar Pradesh Goshala Register

Name and address of the Goshala.....

Date
Serial No.
Name and address of the trustee
Mode of succession to the office of the trustee
Details of property
Total valuation
Immovable
Movable
Land
Value
Building
Value
Particulars of investment
Value of Movable articles, appliances, etc.
In security deposit
In cash
1
2
3
4
5
6
7
8
9
10
11
12
Gross income for three years preceding the year
to which the income for the periods which has elapsed since the
establishment of such Goshalas
Source of income
Annual expenditure for the last three years
Any other particulars prescribed by the rule
Whether filed or recorded
Remarks
Signature of the Registrar
13
14
15
16
17
18
19

Form No. III

[Rule 7]

Certificate of Registration under Section 5 of the Uttar Pradesh Goshala Adhiniyam, 1964

Office of the Registrar of Goshalas, Uttar Pradesh

In the matter of

I do hereby certify that a statement of particulars relating to the above Goshala has been filed under Section 5 of the Uttar Pradesh Goshala Adhiniyam, 1964, and registered this day in my office and that the said Goshala has been duly

registered pursuant to the provisions of the said Adhiniyam.

Dated this day of one thousand nine hundred and

Dated.....

Registrar of Goshalas, Uttar Pradesh.

Seal.

Form No. IV

[Rule 10]

Notice of enquiry under sub-section (2) of Section 8 of the Uttar Pradesh Goshala Adhiniyam, 1964

To

.....
.....
.....

Whereas I have reasons to believe or have received complaint about the unsatisfactory condition of your Goshala, you are hereby directed to appear before me in person or through authorised agent at the following place, date and time with the following relevant papers for inspection :

Place of hearing

Date

Time

Relevant papers to be produced :

(a)

The details of the property appertaining to the Goshala.

(b)

The name and address of the trustee of the Goshala.

(c)

The mode of succession to the office of the Goshala.

(d)

The income and expenditure of the Goshala; and

(e)

The sources of income of the Goshala.

Date

Registrar of Goshalas, Uttar Pradesh.

Form No. V

[Rule 11]

Notice of demand under Section 9 of the Uttar Pradesh Goshala Adhiniyam, 1964

To

.....
.....
.....

Please take notice that you have failed to deposit the fee required to be paid under Section 9 of the Uttar Pradesh Goshala Adhiniyam, 1964, for the period

2. You are, therefore, directed to pay the same either in cash or by means of a bank draft or Crossed Cheque in favour of the Registrar of Goshalas by the

Dated196

Registrar of Goshalas, Uttar Pradesh.

Form No. VI

[Rule 12]

Receipt

Expenditure

Balance

Month and date

Book and serial number of receipt granted

Particulars of receipt (full details of type and source of each item of receipt should be given)

Amount

Month and date

Number of voucher

Particulars of payment (full details of type of payment and name of person or institution to whom the payment is made should be given)

Amount

1

2

3

4

5

6

7

8

Form No. VII

[Rule 14]

Form under Section 10 of the Uttar Pradesh Goshala Adhiniyam, 1964
(Form of Income and Expenditure)

Name of Goshala

Date of Establishment

Place

Statement of accounts for the year 1966

Sl. No.

Receipt

Amount

Sl. No.

Expenditure

Amount

Rs.

Rs.

1.

Briti, donation, gift, subscription, etc.

...

1.

To rent, taxes, etc.

...

2.

By sale of milk

...

2.

Purchase of fodder, livestock, implement, etc.

...

3.

By sale of livestock and manure

...

3.

Establishment and miscellaneous expenditure

...

4.
By rent, revenue and sale of produce
...
4.
Contingency
...
Total
...
Total
...
Form No. VIII
[Rule 15 (1)]
Area fixation form under Section 11 of the Uttar Pradesh Goshala Adhiniyam, 1964
To

.....
.....
.....

The area for your Goshala is hereby fixed as follows bounded by :

North
East
South
West

Director of Animal Husbandry, Uttar Pradesh.

Dated

Form No. IX

[Rule 16]

Statement showing the realization made from the customers in the name of Goshala and also other realization made for unspecified charitable purposes by the traders and merchants during the first/ second half of the year under Section 12.

Serial no.

Particulars of the realisation

First half of the year

Second half of the year

April

May

June

July

August

September

October

November

December

January

February

March

1

2

3

4

5

6

7

8
9
10
11
12
13
14

Submitted to the District Livestock Officerfor information.

Signature of the trader with full address.

Dated 196.....

Form No. X

[Rule 17]

Notice to traders for payment of charitable levies under Section 13 (1) of the Uttar Pradesh Goshala Adhiniyam, 1964

To

Whereas on information I am satisfied that you are realising charitable levy (Dharmdan, Punyakhata, Laga) from your customers but have been wilfully not paying the said levies to the Goshala of you area known as required by Section 13 (1) of the Uttar Pradesh Goshala Adhiniyam, 1964 and it is believed that a considerable amount is lying with you. You are, therefore, directed to appear in person or through authorised agent before me at the following place, date and time with the following relevant papers for inspection :

Place of hearing

Date

Time

Relevant papers to be produced-

(a)

Account Book for the year or years.

Registrar of Goshalas, U.P.

Seal.

Dated

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